

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, AUGUST 18, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, August 18, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, August 17, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0081949 Brewer Road Partners v. Storer, Jeremiah M

The motion to set aside void judgment and for other orders is continued to **October 27, 2026 at 8:30 a.m. in Department 32**.

2. M-CV-0090612 Capital One NA v. Newburn, Todd E

Motion to Vacate the Dismissal and Enforce Settlement under CCP 664.6

Plaintiff's request for judicial notice is granted.

Plaintiff moves the court to set aside and vacate the dismissal and enforce the settlement agreement against defendant. Code of Civil Procedure Section 664.6, subdivision (a) provides "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6 (a).) Here, plaintiff submits a signed settlement agreement executed between the parties. (See request for judicial notice Exh. B.) Pursuant to the terms of the stipulation, defendant was to pay to plaintiff the principal sum of \$5,233.51 over payments, plus costs according to a memorandum of costs. (Mot. Enforce, pg. 2.) Pursuant to the terms of the stipulation, in the event of a default,

judgment is to be entered in favor of the plaintiff and against defendant for the full balance of the account, plus costs according to a memorandum of costs including any motion and/or order fee(s) required by the court, less payments received in good funds before default. (*Id.*)

The parties signed the agreement, thereby satisfying CCP §664.6's requirement that the settlement be in writing and signed by the parties. Plaintiff presents evidence that following execution of the settlement agreement, defendant paid a total of \$883.51 with the last payment received on August 24, 2025. Plaintiff requests judgment be entered for the balance of \$4,350.00, plus court costs in the amount of \$603.61 pursuant to the memorandum of costs filed May 1, 2026, for a total judgment of \$4,953.61. The defendant has not submitted an opposition.

Therefore, based on the record, plaintiff's motion to set aside and vacate the dismissal and enforce settlement under CCP 664.6 is granted.

3. M-CV-0092172 Wells Fargo Bank NA v. Ramezani, Behrooz

Motion to deem admitted plaintiff's requests for admissions, set one

Plaintiff moves to deem admitted plaintiff's requests for admissions, set one.

Section 2033.280 of the California Code of Civil Procedure states "[i]f a party to whom requests for admission are directed fails to serve a timely response... (b) [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted."

Defendant did not file an opposition.

Plaintiff's unopposed motion to deem admitted plaintiff's requests for admissions, set one, is granted. (Code Civ. Proc., § 2033.280 (b).) Defendant is deemed to have admitted the matters set forth in plaintiff's requests for admissions, set one.

4. M-CV-0097943 Singh Randhawa, Yugraj v. Smith, Keyione

Application for Stay of Execution of Judgment

In this unlawful detainer matter, defendant Keyione Smith seeks a stay of execution of judgment through September 2, 2026. The court's August 10, 2026 order granting the stay in part and scheduling this hearing required defendant Smith to deposit \$653 with the clerk of the court for the fair daily rental value for a stay. The order specified, "If the required payment is not timely made, this order shall automatically expire." A review of the court's file reveals no such deposit has been made, so the August 10, 2026 order has expired by its own terms. Request for further stay is denied.

5. S-CV-0048923 Volkmar, Rodney v. Nortech Waste

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval of Class Action Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.)

The court has carefully reviewed and considered the class action settlement agreement, plaintiff's moving papers, and declarations submitted in support thereof. The court determines a sufficient showing has been made that the settlement, the attorneys' fees of \$67,050, the litigation costs of \$8,446.21, the settlement administration costs of \$6,000, and the service award of \$5,000 are fair, adequate, and reasonable. The court grants final approval of the class action and approves the attorneys' fees, litigation costs, settlement administration costs, and the service award.

Plaintiff shall submit a proposed final judgment to the court for its review. The court retains jurisdiction over the parties to enforce the terms of the judgment. (Cal. Rules of Court, rule 3.769, subd. (h).)

The court schedules this matter for a final accounting hearing on **November 10, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a final accounting status report by no later than October 16, 2026. **The order to show cause hearing scheduled for December 8, 2026 is hereby vacated.**

Motion for Attorneys' Fees, Costs, and Service Award

The separately filed motion for attorneys' fees, costs, and service award is denied as moot, as the requested amounts have already been granted by the court's above ruling granting the motion for final approval.

6. S-CV-0049982 Collins, David v. Hooked on Solar

The motion to tax costs is continued to **September 22, 2026 at 8:30 a.m. in Department 32**. No further briefing is permitted.

7. **S-CV-0052009 Hill, Jacob v. Keller Williams Realty**

This tentative ruling is issued by the **Honorable Leon A. Dixon**. If oral argument is timely requested, it will be heard on **August 18, 2026, at 1:00 p.m. in Department 41**.

Defendant Amber Acosta's Motion to Set Aside Default and Default Judgment

Defendant, Ms. Acosta, moves to set aside the default and default judgment entered against her on June 9, 2025, and August 12, 2025, respectively, pursuant to Code of Civil Procedure sections 473(b) and 473.5(a). The judgment was amended August 29, 2025. Plaintiff, Jacob Hill, opposes the motion.

As a preliminary matter, Ms. Acosta failed to file proof of service of this motion as required. However, as Mr. Hill filed a substantive opposition, the court exercises its discretion to review the motion on the merits to prevent further delay.

Ms. Acosta argues the default and default judgment should be set aside pursuant to Code of Civil Procedure sections 473(b) and 473.5(a) because she did not receive actual notice of service of summons.

Code of Civil Procedure section 473(b) provides a party or the party's legal representative an opportunity to be relieved from a judgment, order, or other proceeding taken against that party based on certain grounds. However, the application for relief "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473(b).)

Ms. Acosta cannot rely on section 473(b) to set aside the default and default judgment because she filed the motion more than six months following the entry of default and default judgment.

Ms. Acosta also relies on Code of Civil Procedure section 473.5(a), alleging she did not receive actual notice of service of summons.

"When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered." (Code Civ. Proc., § 473.5 (a).)

There is a rebuttable presumption that service was proper where service was conducted by a registered process server. (Evid. Code, § 647.) Ms. Acosta's sworn declaration contradicts the averments made by the unregistered process servers.

Mr. Hill filed proof of service of summons showing substitute service was conducted by an unregistered process server on June 12, 2024, at 1553 Montrose Lane, Lincoln, CA 95648. The person who accepted service was identified as “Ms. Angelina Rey; Mother.” However, Ms. Acosta filed a declaration with her motion stating she does not reside or receive mail at 1553 Montrose Lane, Lincoln, CA 95648. (See Mot. Set Aside, Exh. 2.)

Mr. Hill filed proof of service with the court stating an unregistered process server personally served the Third Amended Complaint on Ms. Acosta at 1553 Montrose Lane, Lincoln, CA 95648 on April 17, 2025. Ms. Acosta asserts in her declaration that she was not present at that location on the date in question. She states she was attending her nephew’s baptism in the state of Washington with her husband and other family. (See Mot. Set Aside, Exh. 2.)

Having read and considered the pleadings, the court finds proper service was not effectuated in this case. Ms. Acosta’s motion is granted pursuant to Code of Civil Procedure section 473.5(a). The default, default judgment, and amended default judgment entered against her on June 9, 2025, August 12, 2025, and August 29, 2025, respectively, are hereby set aside. Ms. Acosta shall file and serve her answer to the Third Amended Complaint by August 28, 2026.

8. S-CV-0053983 Gray, Bobby Dean III v. Foster, Steven

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Amended Motion for Leave to File a Fourth Amended Complaint (“4AC”)

Plaintiff moves for an order granting leave to file a fourth amended complaint to add and delete various factual allegations and to add a defendant. Plaintiff initially filed this motion for leave on April 3, 2026 and then filed an amended motion on May 12, 2026. While defendants filed an opposition on August 5, 2026, defense counsel has since notified the court that due to defense counsel’s inadvertence, defendants’ August 5, 2026 opposition was in response to plaintiff’s April 3, 2026 motion rather than the amended May 12, 2026 motion. Defendants’ request for leave to file an opposition to the amended motion is granted.

The court continues the hearing on the amended motion for leave to file a 4AC to **September 22, 2026 at 8:30 a.m. in Department 32**. Defendants shall file and serve their supplemental opposition by September 9, 2026. Plaintiff shall file and serve his supplemental reply by September 15, 2026.

9. **S-CV-0054129 Faqurzadeh, Nabila v. CSAA Ins. Exchange**

Motion to Compel Uninsured Motorist Arbitration

CSAA Insurance Exchange moves this court for an order compelling claimant Nabila Faqurzadeh to binding uninsured motorist arbitration with Retired Judge David Brown through JAMS Alternative Dispute Resolution. Claimant has not filed a response or yet appeared in this case. Previously, this court continued the matter for CSAA Insurance Exchange to file proof of service of the motion on claimant Nabila Faqurzadeh.

Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration “if [the court] determines that an agreement to arbitrate the controversy exists.” (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59.) “A party seeking to compel arbitration has the burden of proving the existence of a valid agreement to arbitrate. Once that burden is satisfied, the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition.” (*Sparks v. Vista Del Mar Child & Family Services* (2012) 207 Cal.App.4th 1511, 1518, abrogated by *Harris v. TAP Worldwide, LLC* (2016) 148 Cal.App.4th 373 on other grounds.)

Although CSAA Insurance Exchange submits evidence of an agreement to arbitrate (see Anderson Decl. & Exh. A), proof of service of the motion on claimant Nabila Faqurzadeh remains deficient. Code Civil Procedure section 1290.4 (b) states as follows: “If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: (1) service within this state shall be made in the manner provided by law for the service of summons in an action.”

CSAA Insurance Exchange filed proof of service on claimant’s purported counsel, but that is insufficient as claimant has not appeared in this case. Therefore, CSAA Insurance Exchange does not demonstrate service of the motion pursuant to Code of Civil Procedure section 1290.4(b).

Given this procedural deficiency, the motion is continued for proper service. CSAA Insurance Exchange shall file and serve notice of the continued hearing date on claimant.

The motion to compel uninsured motorist arbitration is continued to **October 20, 2026, at 8:30 a.m., in Department 32** for CSAA Insurance Exchange to file a proper proof of service of the motion on claimant Nabila Faqurzadeh.

10. **S-CV-0054772 Deutsche Bank Natl. Trust. v. New Century Mortgage**

The motion to discharge receiver is continued to **September 22, 2026 at 8:30 a.m. in Department 32** to be heard by the **Honorable Angus Saint-Evens**.

11. S-CV-0055842 Grand, Natalie v. Hosseini, Nima

Petition for Approval of Minor's Compromise of Claim

Petitioner Natalie Grand seeks to compromise the claim of minor Maximilian Grand.

The petition contains conflicting allegations. Item 12a specifies that there were \$500 in medical expenses "to be paid or reimbursed from proceeds of settlement or judgment" and 12b(1) specifies that \$500 has been paid by petitioner. However, item 14a specifies that petitioner "has paid none of the fees or expenses listed in items 12 and 13 for which reimbursement is requested." Additionally, the \$500 is not reflected in the calculated net balance at item 15 nor is it reflected in the summary at item 16.

The petition alleges that minor claimant was injured, received a dental evaluation, and is not recovered completely. The petition further alleges the minor will require one of two types of veneers once his teeth mature and the estimated cost is between \$5,000 and \$15,000, depending on the type of the veneer. Petitioner provides a receipt showing payment for the dental evaluation, but the information about the prognosis and when the veneers may be obtained is not supported by any letter from the dentist or any other dental provider. While it appears petitioner alleges no medical records exist, something more than bare allegations is required.

The court also observes that this petition was filed a mere two court days before the hearing and there is no evidence the petition was served on any other party.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is waived.

12. S-CV-0055953 Safe Nation Found. v. Wildlife Heritage Found.

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion To Be Relieved as Counsel

Counsel James A. Filippi II's motion to be relieved as counsel for plaintiff Safe Nation Foundation formerly known as Steelheart International Foundation is granted, effective upon the filing of a proof of service of the signed order after hearing on plaintiff.

As an entity defendant may not represent itself in court, plaintiff is advised it must obtain representation forthwith and that failure to do so may result in consequences including but not limited to the inability to defend against motions, the inability to prosecute the case, and ultimately possible dismissal of the action. (*CLD Construction, Inc. v. City of*

San Ramon (2004) 120 Cal.App.4th 1141; *Van Gundy v. Camelot Resorts, Inc.* (1983) 152 Cal.App.3d Supp. 29.)

13. S-CV-0057432 Galvez, Peter v. Elias, Shelby

Defendant is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Set Aside Entry of Default

Defendant Capitol City Real Estate, Inc. (“Capitol City”) moves to set aside the May 18, 2026 entry of default against it pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

A motion to set aside default “shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted[.]” (Code Civ. Proc., § 473, subd. (b).) Here, Capitol City did not provide any proposed responsive pleading with its moving papers. Rather than deny the motion outright due to this procedural deficiency, the court on its own motion continues this motion to **September 8, 2026 at 8:30 a.m. in Department 32**. Defendant Capitol City is directed to submit a proposed responsive pleading by August 21, 2026. Defendant Capitol City shall also file and serve a notice of continued hearing and file a proof of service by August 21, 2026. No additional briefing is permitted. The court intends to reach the substance of the motion at the continued hearing.

14. T-CV-0002823 In Re the Petition of No. Tahoe Pub. Utilities Dist.

Petition for Leave to File a Late Government Claim Pursuant to Government Code §946.6

Background

Petitioner alleges on July 18, 2024, a sewer main owned by petitioner was punctured underneath North Lake Boulevard in Carnelian Bay, California. Petitioner alleges the puncture was caused by a California Department of Transportation’s (Caltrans) contractor who was performing excavation activities in connection with a Caltrans project. Petitioner filed government claim alleging damages related to that puncture on July 18, 2025. (Opp’n at 2.)

Legal Standard

A suit for money or damages against a California public entity may not be brought “until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board . . .” (Gov. Code, § 945.4.) A claim for injury to real property must be presented within one year of the

incident. (Gov. Code, § 911.2, subd. (a)). Claims for injury to personal property must be presented within six months of the incident. (Gov. Code, § 911.2, subd. (a)). If a claim for injury to personal property is not presented within six months, a written application may be made to a public entity for leave to present a late claim within a reasonable time but no more than one year after the incident. (Gov. Code, § 911.4, subd. (a)-(b).) If an application for leave to present a late claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4. (Gov. Code, § 946.6, subd. (a).) The petition to court must be filed within six months after the application to the board is denied or deemed to be denied under Section 911.6. (*Id.*, subd. (b).)

In deciding whether to grant the petition, the court must determine that the claimant's application for leave to present a late claim was brought within a reasonable time, not to exceed one year. (Gov. Code § 946.6, subd. (c)). Then, the court, must find that one of six excusable scenarios occurred. The first scenario applies here, "[t]he failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4. . ." (Gov. Code, § 946.6(c)(1).) The showing required for relief under Government Code section 946.6(c)(1) because of mistake, inadvertence, surprise, or excusable neglect is the same as required under Code of Civil Procedure section 473 for relieving a party from a default judgment. (*Lutz v. Tri-City Hospital* (1986) 179 Cal.App.3d 807, 810-11; *Bertorelli v. City of Tulare* (1986) 180 Cal.App.3d 432, 438; *Viles v. State of California* (1967) 66 Cal.2d 24, 29.) Relief under section 946.6 is appropriate where the claimant or counsel justifiably relies on someone else, but that third party errs or otherwise causes the delay. (*Renteria v. Juvenile Justice, Department of Corrections & Rehabilitation* (2006) 135 Cal.App.4th 903, 912.)

Analysis

Similar to *Renteria*, in this case, the district relied upon its insurance carrier's statements that it would file a government claim on behalf of the district. The insurance carrier represented that the claim would be covered and it would be subrogated to Caltrans. ((Johnson Decl., ¶ 10.) The insurance carrier indicated it would subrogate the claim to Caltrans, and it would submit the necessary government claim. (*Id.*) District staff reminded the insurance carrier of the need to submit a government claim and checked on the status of the claim with the insurance carrier. (*Id.*) After the insurance carrier informed the district that no government claim had been filed on July 15, 2025, the district and its counsel acted diligently to file a claim in three days, by July 18, 2025. (*Id.*, ¶¶ 11-13.) Thus, the district acted as a reasonably prudent person would to investigate and pursue a claim against Caltrans for damage to the pipeline. Its failure to file a claim within six months was due to the district's reasonable belief that its insurance carrier had already filed the claim on its behalf. The delay was a result of mistake, inadvertence, surprise, or excusable neglect. For these reasons, petitioner requests relief to file a late claim is appropriate under Government Code section 946.6.

In opposition, respondent states this petition should be denied because no justiciable controversy exists. Petitioner's claim for real property damage was filed within the one year of the "accrual of the cause of action" as required under Government Code § 911.2. Therefore, respondent states no relief from the Government Code § 945.4 is necessary nor justified.

In reply, petitioner states Caltrans does not dispute the evidence establishing the district's entitlement to relief under the Government Claims Act to file a claim for personal property. The district owns and controls the force main (Johnson Decl., ¶ 3); the pipe serves the district's independent sewer system rather than the State highway through which it passes (*ibid*); and there is no evidence that the district intended to surrender ownership or make the pipe a permanent accession to the State's land. (*City of Vallejo v. Burrill* (1923) 64 Cal. App. 399, 407; *Taylor v. Heydenreich* (1949) 92 Cal. App.2d 684, 688.) Petitioner also identifies other specific personal property allegedly damaged by respondent which may be subject to petitioner's claim.

Conclusion

The petition is granted. The court makes no findings at this time regarding the appropriate characterization of the sewer force main. Petitioner is relieved from the requirements of Government Code section 945.4 with respect to its late-presented claim for injury to personal property.
